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September 11, 2017

Via Email and Federal Express Overnight

Ms. Rachel Dickon, Secretary

FEDERAL MARITIME COMMISSION

800 N. Capitol Street N.W., Room 1046
Washington, DC 20573

**RE: D.F. Young, Inc. vs. NYK Line (North America), Inc.
FMC Docket No.: 16-02
Our File No.: 9004-2695**

Dear Ms. Dickon:

We enclose for filing an original and six (6) copies of: Complainant D.F. Young, Inc.'s Opposition to Motion to Enlarge it's Time to Oppose Complainant's Motion Served September 6, 2017.

Could you kindly stamp the extra copy as "filed" and return it to us in the enclosed self-addressed stamped envelope? We appreciate your kind consideration. If you have any questions concerning our request, please do not hesitate to give me a call.

Respectfully submitted,


THOMAS J. WAGNER

TJW/kpa
Enclosures

cc: Paul Keane, Esq.
Joseph De May, Jr., Esq.

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PLEASE REPLY TO:
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BEFORE THE FEDERAL MARITIME COMMISSION

D.F. YOUNG, INC.,	:	
Complainant,	:	
v.	:	
NYK LINE (NORTH AMERICA), INC.,	:	DOCKET NO.: 16-02
Respondent.	:	

**COMPLAINANT D.F. YOUNG, INC.'S OPPOSITION TO RESPONDENT'S MOTION TO
ENLARGE ITS TIME TO OPPOSE COMPLAINANT'S MOTION SERVED
SEPTEMBER 6, 2017**

Complainant. D.F. Young, Inc., opposes Respondent's Motion to Enlarge Time to Oppose Complainant's Rule 230 Motion because Complainant's Rule 230 Motion was filed to correct a simple clerical error and substitute the correct Exhibit "A" to Complainant's Motion for Summary Decision and Opposition to Respondent's Motion for Summary Decision ("MSD Filing"). The Rule 230 Motion is not Complainant's Exceptions to the August 1, 2017 Initial Decision. Respondent equates the 2 filings and seeks additional time that is unnecessary. In support, Complainant asserts:

1-2. There is no dispute that Respondent seeks additional time and that no other enlargements have been requested or granted.

3. Respondent and Plaintiff's counsel spoke on September 7, 2017 but could not agree to the length of time Respondent requested. Complainant was, and is, willing to consent to a few extra days in which to oppose Complainant's Rule 230 Motion.

Complainant was, and is, willing to consent to an extension of time should Respondent seek one to oppose Complainant's Exceptions. The difference being that Complainant's Rule 230 Motion simply seeks to correct a clerical error with evidence that both parties are aware of, have cited in their MSD

Filings and should be accepted as the record pursuant to FMC Rules 206 and 226. It is not a complex filing

4. Upon the death of Complainant's counsel's close family member, Complainant and Respondent agreed to at an additional fourteen (14) days within which Complainant may file Exceptions.

However, Complainant's Rule 230 Motion is a separate filing from Complainant's Exceptions. Frankly, the incorrect Exhibit "A" to Complainant's MSD Filing was not discovered until it's Exceptions were developed. The Rule 230 Motion was filed in the abundance of caution citing FMC Rules 206 and 226 and would not have been thought necessary by counsel if the correct Exhibit "A" was already attached to Complainant's MSD Filings.

Complainant did not need, or ask for, an extension of time in which to file the Rule 230 Motion. Respondent's counsel's implication that they were somehow hoodwinked into agreeing to Complainant's request for an extension of time based on the passing of a family member so Complainant could file the Rule 230 Motion is not fact-based.

5. Complainant's Motion seeks submission of the correct Exhibit "A" into the record, which includes Respondent's admission concerning the Tariff and selections from Respondent's publicly available Tariff 156 – the tariff developed by Respondents, Complainant and the Initial Decision - and Respondent's Bill of Lading terms contained in Tariff 156 pursuant to FMC Rules¹ Complainant submitted the Rule 230 Motion to ensure that the Commission considered that evidence. FMC Rule 230 provides a ten (10) day response time which is fair and sufficient for the instant Motion. Neither Rule

¹ Incorrectly cited as 161 (former rule) and 226. The tariff was shown by both parties to be reasonably available to the public and was specified in relevant part in the correct Exhibit "A". It was clearly identified with sufficient particularity and was readily located in the correct Exhibit "A". FMC Rule 206.

230, nor Complainant's Rule 230 Motion, require any response to Complainant's Exceptions, despite respondent's claim otherwise.

6. Complainant's Rule 230 Motion demonstrates the materiality of the correct Exhibit "A", as required by Rule 230 and satisfies the Commission's requirement that the Motion be filed timely with an explanation of the basis for the relief requested.

Complainant's Rule 230 Motion provides arguments to demonstrate the that the clerical error should be corrected, in the interests of judicial economy and fundamental fairness and to avoid manifest injustice, and that support recognition of Respondent's Answer to Request for Admission No. 1 and Respondent's own Tariff 156 terms that are discussed in the MSD Filings and the Initial Decision. Complainant submits that there is no prejudice to Respondent in recognizing it's publicly available Tariff 156; and no basis to keep those terms from the record.

7. Respondent has thirty-six (36) days to prepare opposition to Complainant's Exceptions. Complainant's Rule 230 Motion seeks different relief than the Exceptions and on a different basis and under a separate Rule.

A ruling on Complainant's Rule 230 Motion may obviate the need for Respondent to prepare any opposition to Complainant's Exceptions. For example, the Commission could remand the case to ALJ Wirth to consider the evidence; or simply correct the clerical mistake and officially include the terms in the record. The Tariff 156 terms, which include the terms of respondent's Bills of Lading, should properly be part of the record pursuant to FMC Rules 206 & 226. That alone may lead to resolution of this claim. A remand is likely to lead to reversal of the Initial Decision without resort to Exceptions.

8. Complainant didn't need or ask for an extension of time to file it's Rule 230 Motion. Despite Respondent's effort to equate Complainant's Rule 230 Motion and Exceptions, they are separate

filings seeking different relief. Respondent, should it choose to do so, still has thirty-six (36) days to answer or oppose Complainant's Exceptions. Rule 230 provides a ten (10) day response time. Complainant has no opposition to Respondent's answering the Rule 230 Motion in those ten (10) days.

9. Complainant is not trying to "avoid its agreement with respondent". Complainant's Rule 230 Motion is not Complainant's Exceptions. If Respondents seek to avoid the preparation of an opposition to Complainant's Rule 230 Motion, they need not oppose it. As it stands now, and based on Respondent's representations, Respondent's plan to oppose the Rule 230 Motion. There is no reason that opposition should be delayed beyond the ten (10) days provided by Rule 230.

10. Respondent has thirty-six (36) days in which to oppose Complainant Exceptions. Respondent has ten (10) days provided by Rule 230 to oppose, if chosen, Complainant's Rule 230 Motion. Despite Respondent's attempt to equate the 2, Respondent does not have to answer or oppose any Exceptions until October 12, 2017, as agreed.

11. Responding to the Rule 230 Motion and Complainant's Exceptions are not "piecemeal". They are separate requests for relief, under separate Rules and with separate facts. Complainant's Rule 230 Motion contains eight (8) pages and is restricted to correcting a clerical mistake where an incorrect Exhibit "A" containing Respondent's Admission that the applicable Tariff 156 was publicly available, the terms of that Tariff advising that "gross freight" was the measure of Freight Forwarder Compensation, and that the "tariff rate" and Heavy Lift and Extra length charges were not applicable. The tariff also contains Respondent's Bill of Lading terms and was referred to in the MSD Filings of both parties. Claimant's Rule 230 Motion provided the foundation to justify the relief requested in the

Rule 230 Motion. Respondent's claim that it is "impossible" to prepare an opposition in ten (10) days seems far-fetched.

12. Respondent's description of this litigation as one presenting an issue of first impression is a fair one. However, Respondent has and will have thirty-six (36) days in which to answer/oppose Complainant's exceptions. If the Commissions grants, in whole or in part, Complainant's Rule 230 Motion, Respondent will save the time and effort necessary to prepare it's Opposition to Claimant's Exceptions.

Complainant's Exceptions address issues concerning the Initial Decision. The Rule 230 Motion addresses a clerical mistake that neither party detected till now. And, the subject of that clerical mistake was Respondent's own Tariff 156. Through operation of Rules 206 and 226, that Tariff 156 should properly be part of the record anyway. Complainant submits that an extension of time to answer the Motion should be denied because there is no valid basis for the extension.

13. Respondent will have thirty-six (36) days to answer the Exceptions – and Complainant has already agreed to lend it's consent should counsel seek more time from the Commission. Thus, Respondent's counsel can "write a shorter letter" on the shorter issue, the Motion, in ten (10) days.

Frankly, everywhere, at every time in litigation, parties and counsel would like more time. Here, however, Respondent has sufficient time – and the potential for more time if requested – to

answer/oppose Complainant's Exceptions. There is no need to delay an answer or opposition to Complainant's Rule 230 Motion.

Respectfully submitted,

LAW OFFICES OF THOMAS J. WAGNER, LLC

Date: September, 11, 2017 By: _____

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BEFORE THE FEDERAL MARITIME COMMISSION

D.F. YOUNG, INC.,	:	
Complainant,	:	
v.	:	
NYK LINE (NORTH AMERICA), INC.,	:	DOCKET NO.: 16-02
Respondent.	:	

CERTIFICATE OF SERVICE

The undersigned certifies that on the date noted below he served a true and correct copy of the foregoing Complainant D.F. Young, Inc.'s Opposition to Respondent's Motion to Enlarge its Time to Oppose Complainant's Motion Served September 6, 2017, dated September 11, 2017 via Electronic Mail and U.S. Mail First Class on the following at the addresses provided:

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Attorneys for Respondent, NYK Line (North America), Inc.

Respectfully submitted,

LAW OFFICES OF THOMAS J. WAGNER, LLC

Date: September 11, 2017 By: _____

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